

File No.: EXP202210589

RESOLUTION No.: R/00163/2023

Considering the complaint filed on August 8, 2022, with this Agency by Mr. A.A.A., against MERCEDES-BENZ GROUP AG, for not having duly attended to his right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On February 21, 2022, and July 6, 2022, Mr. A.A.A. (hereinafter, the complainant) exercised his right of access against MERCEDES-BENZ GROUP AG (hereinafter, the respondent) and his request, as stated by the complainant, did not receive the legally established response.

The complainant, as he points out, is the owner of the vehicle VEHICLE.1 and requests the right of access to his personal data in accordance with data protection regulations. He provides various documents related to the complaint filed with this Agency and regarding the exercise of the right exercised.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission for processing of complaints filed with the AEPD, consisting of forwarding them to the Data Protection Officers designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the entity being complained against for it to proceed with its analysis and respond to the complainant and this Agency within one month.

The representative of the respondent provided documentation by which the right is attended to, and in it, they request that the data provided by the complainant is not sufficient to identify him unequivocally and that in order to process the request, he must complete the information related to the vehicle mentioned therein. The chassis number and the period of ownership of the vehicle are requested.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow understanding that the complainant's claims were satisfied. Consequently, on November 8, 2022, for the purposes provided for in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing and informed the parties that the maximum period to resolve this procedure, which is understood to have commenced through said admission agreement, will be six months.

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The aforementioned agreement granted the entity being complained against a hearing procedure, so that within ten working days, it could present the allegations it deemed appropriate.

This entity made, in summary, the following allegations:

“This party wants to emphasize that the AEPD has made an error by stating that, through the response made, additional information was requested from the complainant before proceeding to the proper attention of the exercise of the right of access made by him.

In this regard, it should be clarified that this authority was informed of the due responses that had been made to the complainant in the terms required in its resolution, justifying that the information subject to processing is not provided because it could lead to negligent actions and not an obstruction to the attention of the right. That the action was due to the lack of proper accreditation of the ownership of the vehicle by the complainant, which means that the appropriate information associated with a natural person cannot be provided without harming the rights of third parties.

That, having said that, it would be inappropriate to admit the complaint since the complaints filed may be inadmissible as long as no harm has been caused to the affected party.

This party understands that it is appropriate to continue the processing of the procedure and that the decision of this Agency is in accordance with the law, given that three months have passed without an express pronouncement to that effect.

This party is aware of the high volume of work that this institution is subjected to; however, this does not prevent the immediate termination of the procedure as a result of the tacit admission of the complaint, since it is clear that, from the reasons stated and the response to the request, no provision established in the data protection regulations has been violated.

It has been duly verified that the request for the right has been made and no harm has been caused to the complainant, who was not willing to provide the required documentation established in the internal processes of the entity.

It is worth highlighting the due respect for the rights and freedoms of individuals and specifically for data protection, which reinforces the diligence shown; however, this party is at the disposal of this authority for any improvement or recommendation regarding compliance with the regulations.”

FOURTH: After examining the allegations presented by the respondent, they are forwarded to the complainant, so that, within fifteen working days, he may formulate any allegations he deems appropriate:

The complainant provides documentation of the latest emails exchanged with the respondent. Among the documentation, an email dated the 23rd is attached.

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of September 2022, where the claimant attaches a document extracted from the DGT certifying the ownership of the vehicle.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and Article 47 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD).

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by data subjects and investigating the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, the complaint was forwarded to the responsible entity for analysis, requiring a response to this Agency within one month and certifying that the necessary response had been provided to the claimant, in the event of the exercise of the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the

admission agreement was notified to the claimant. After this period, the interested party may consider their complaint accepted.”

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The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed timely, given that its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to commence a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that the current procedure duly restores the guarantees and rights of the claimant.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Article 12 of the GDPR and Article 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party falls on the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the controller provides remote access to the data, with the request being deemed fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive more than once during a period of six months, unless there is a legitimate reason for it.

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On the other hand, the request will be considered excessive when the affected party chooses a means different from the one offered that entails a disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal

data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization.

The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others; that is, the right of access will be granted in such a way that it does not affect third-party data.

That said, in the case analyzed here, the claiming party exercised their right of access to their personal data, including the request for personal data related to a vehicle of which they claim to be the owner, and, after the period established according to the aforementioned regulations, their request did not receive the legally required response, as access was not granted.

The responding party replied to the data subject regarding the access request made five months later, stating that they could not fulfill the requested right of access because “unfortunately, the data provided by you is not sufficient to unequivocally and without a doubt identify you in their information systems,” requesting additional data for this purpose (“Postal Address: Street: Number: Floor: Postal Code: City: Country:”). However, it is worth mentioning that the data subject provided their first name and surname, their ID number, as well as the license plate number of the vehicle they claim to own when requesting their right of access, without being informed in the response why such personal data could not unequivocally identify the claiming party, especially since in this response regarding the exercise of the right of access, the responding party addressed the claiming party by citing their first name and both surnames.

Furthermore, in that response, the responding party requested additional data regarding the ownership of the vehicle.

Therefore, the responding party did not respond to the claiming party in a timely manner, nor did the request receive the legally required response. And all this, despite the fact that the responding party indicates

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to the AEPD, which has responded to the complainant requesting additional information regarding the ownership of the vehicle, in order to avoid negligent actions without harming the rights of third parties. In this regard, it should be noted that the right of access to personal data is a personal right and is recognized as a fundamental right in itself, enjoying constitutional protection that grants citizens the power to control their data, so that, based on their consent or because it is necessary due to an obligation, they can manage it.

The right to the protection of personal data has been built upon the distinction from the original right to privacy and requires legal protection, which has been defined as an autonomous and independent right by the Constitutional Court Judgment 292/2000, of November 30.

At the moment personal data is collected, the data subject must be informed about the legitimacy and purpose for which the data is being collected and the uses that will be made of it, as well as the possibility of exercising their rights with the identification of the data controller. They can access a registry or database, whether public or private, to verify its accuracy, being able to delete information if it is false, or prevent it from being used for purposes other than the creation of storage and knowledge of their own data that appears in different databases, and the information will be provided in writing or by other means, including, if appropriate, by electronic means.

The right of access, in this case, may have an instrumental character and cannot be limited by denying the response on the grounds that the data available may be related to a third party, considering that this right establishes the obligation to provide the data subject with the data that concerns them

(excluding data that refers exclusively to another person) and since the complainant is duly identified, no additional information can be requested either from the data subject or regarding the vehicle. The entity must provide the data it has concerning the complainant and any information associated with them; therefore, if it contains information about the vehicle in question related to it, it must be made available to them, or otherwise, deny it, providing appropriate justification.

In the case analyzed here, with the documentation available in the procedure and as derived from the allegations made and the documentation provided, it is concluded that the respondent must provide the requested access under the terms set forth in the previous paragraph.

Based on the above, considering that this procedure aims to ensure that the guarantees and rights of the affected parties are duly restored, it is appropriate to uphold the complaint that initiated this procedure, as it is believed that the right of access was not carried out properly.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO UPHOLD the complaint filed by Mr. A.A.A. and to urge MERCEDES-BENZ GROUP AG to, within ten working days following the notification of this resolution, send to the complainant a certification that addresses the requested right of access or deny it with justification indicating the reasons why the request cannot be granted, in accordance with the provisions set forth in this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of the infringement considered in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to MERCEDES-BENZ GROUP AG.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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